

Gas Safety (Gas Supply) Regulations
(Cap. 51 sub. leg. B)

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Gas Safety (Gas Supply) Regulations

(Cap. 51, section 8)

(Enacting provision omitted—E.R. 5 of 2022)

[1 April 1991] *L.N. 119 of 1991*

(Format changes—E.R. 5 of 2022)

Part I

Preliminary

1. Citation

(E.R. 5 of 2022)

- (1) These regulations may be cited as the Gas Safety (Gas Supply) Regulations.
- (2) *(Omitted as spent—E.R. 5 of 2022)*

2. Interpretation

- (1) In these regulations, unless the context otherwise requires—
approved plans (批准圖則), in relation to construction work which has construction approval, means the plans, including any modifications thereto, specified in a notice under regulation 5(1)(a) or (b) as the plans in accordance with which the construction work shall be carried out;
cargo compartment (載貨間), in relation to a cylinder wagon, means that part of the wagon which is used to carry cylinders;
construction approval (建造批准) means the approval under regulation 5(1)(a) or (b) of construction work;

construction work (建造工程) means work in connection with the erection, relocation or major alteration of a notifiable gas installation, or major repairs of a structural nature to a notifiable gas installation;

direct-fired vaporiser (明火直熱式汽化器) means a vaporiser which burns liquefied petroleum gas or other fuel to provide heat directly to that part of the vaporiser through which liquefied petroleum gas flows;

equipment (設備), in relation to a gas vehicle, includes fittings and accessories;

fill (注入), in relation to a container, includes refill;

fixed maximum level device (固定式最高液位計) means a device fitted to a tank for the purpose of ascertaining whether the amount of liquefied petroleum gas in the tank is more than the safe filling capacity of the tank;

flexible gas tubing (氣體接駁軟喉) means flexible gas tubing within the meaning of the Gas Safety (Miscellaneous) Regulations (Cap. 51 sub. leg. F); (*E.R. 5 of 2022*)

high pressure (高壓) means a pressure of more than 700 kPa;

intermediate pressure (次高壓) means a pressure of more than 240 kPa but not more than 700 kPa;

label (標籤) means a label issued under regulation 34;

liquefied petroleum gas storage installation (石油氣儲存裝置) means a gas installation as described in paragraph (f) of the definition of **notifiable gas installation**; (*E.R. 5 of 2022*)

low pressure (低壓) means a pressure of not more than 7.5 kPa;

medium pressure (中壓) means a pressure of more than 7.5 kPa but not more than 240 kPa;

permit (許可證) means a permit issued under regulation 26 in respect of a gas vehicle;

prescribed fee (訂明費用), in relation to any provision of these regulations, means the fee prescribed in Schedule 1 in relation to that provision;

use (使用), in relation to a motor vehicle, includes drive;

vaporiser (汽化器) means any equipment used, or to be used, to provide heat for the vaporisation of liquefied petroleum gas.

(22 of 1996 s. 7)

- (2) In these regulations, unless the contrary intention appears, a reference to—
- (a) the erection of a notifiable gas installation includes, where the case requires, a reference to the removal of the installation and its re-erection, with or without alteration, after its removal from another location;
 - (b) the alteration of a notifiable gas installation includes a reference to—
 - (i) the demolition of part of the installation; and
 - (ii) an addition to the installation; and
 - (c) carrying out construction work in accordance with approved plans includes a reference to the carrying out of construction work in accordance with plans, or those plans as amended, whether before or after the commencement of the construction work, as approved in accordance with these regulations.
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Part II

Construction and Use of Notifiable Gas Installations

3. No person to construct, etc. notifiable gas installation unless construction approval, etc. has been obtained

- (1) No person shall—
 - (a) carry out any construction work unless such work has construction approval; or
 - (b) use any notifiable gas installation to which any construction approval relates unless the use of such installation is approved under regulation 6.
- (2) No person shall supply gas to a notifiable gas installation where he knows, or ought reasonably to know, that—
 - (a) construction work has been carried out on it; or
 - (b) it is being used,in contravention of subregulation (1).
- (3) For the avoidance of doubt, it is hereby declared that the erection of a notifiable gas installation which is a store includes placing any container or containers in the place which is or is to be the store, and whether or not—
 - (a) the container or containers, as the case may be, are—
 - (i) placed in any premises or part of any premises;
 - (ii) owned by one or more persons;
 - (b) any other construction work has been carried out in relation to the store. (*L.N. 462 of 1995*)
- (4) For the avoidance of doubt, it is hereby declared that the definition of **container** in section 2 of the Ordinance shall

apply for the purposes of subregulation (3). (*L.N. 462 of 1995*)

4. Application for construction approval

- (1) The person who proposes to carry out construction work may make an application to the Authority for construction approval of the construction work, including modifications of construction work for which construction approval has already been given.
- (2) An application under subregulation (1) shall be—
 - (a) in the approved form; and
 - (b) accompanied by—
 - (i) a written statement as to the purpose of the notifiable gas installation to which the application relates;
 - (ii) the prescribed fee;
 - (iii) 2 copies of all plans relating to the installation, including—
 - (A) a plan showing the siting of the installation; and
 - (B) a plan showing details of the environment surrounding the installation; and
 - (iv) a written statement setting out particulars of all buildings, containers, machinery, plant and equipment to form part of, or to be used in connection with, the installation.
- (3) The Authority may, by notice in writing served on a person who has made an application under subregulation (1), require the person to furnish him with—

- (a) 2 copies of all such plans as are specified in the notice, being plans in addition to those specified under subregulation (2)(b)(iii); or
- (b) such particulars as are specified in the notice, being plans and particulars which the Authority thinks necessary for determining the application under regulation 5.

5. Determination of application for construction approval

- (1) Subject to this regulation, the Authority shall determine an application made under regulation 4(1) by a person for construction approval by serving in accordance with subregulation (2) a notice on the person—
 - (a) granting construction approval of the construction work in accordance with such plans as were submitted under regulation 4(2)(b)(iii) with that application, and such other plans as were submitted in accordance with any notice under regulation 4(3) served on that person;
 - (b) granting construction approval of the construction work in accordance with such plans as were submitted under regulation 4(2)(b)(iii) with that application, and such other plans as were submitted in accordance with any notice under regulation 4(3) served on that person, subject to such reasonable conditions by way of modifications to any of those plans as are set out in the notice served under this regulation on that person; or
 - (c) refusing to grant construction approval of the construction work.
- (2) A notice under subregulation (1) in respect of an application made under regulation 4(1) shall be served—
 - (a) where no notice has been given under regulation 4(3) in respect of that application within a period of 60 days

- after that application was so made, not later than the expiration of that period; and
- (b) where a notice has been given under regulation 4(3) in respect of that application within a period of 60 days after that application was so made, not later than 30 days after the Authority has been furnished with the plans or particulars required by the notice under regulation 4(3).
- (3) The Authority shall not grant construction approval of construction work unless—
- (a) the notifiable gas installation will, if constructed in accordance with the approved plans, comply with the requirements under the Ordinance applicable to such an installation; and
 - (b) the Authority is satisfied that the notifiable gas installation will not present an unacceptable risk to the health and safety of members of the public residing or working in the vicinity of the place where the installation will be constructed, whether during its construction or after it is brought into use.
- (4) Without prejudice to the generality of conditions which may be imposed under subregulation (1)(b) by way of modification to any plans submitted under regulation 4(2)(b)(iii) or submitted in accordance with a notice served under regulation 4(3), construction approval of construction work may be granted subject to such reasonable conditions, whether by way of modification to such plans or otherwise—
- (a) as the Authority thinks fit, in particular—
 - (i) specifying the construction and location of buildings or other structures on the site which is served or to be served by the notifiable gas installation for the purpose of ensuring that

ventilation of the installation will not be impaired;
and

- (ii) restricting the planting of vegetation in the vicinity of the notifiable gas installation for the purpose of ensuring that ventilation of the installation will not be impaired or that a potential fire hazard for the installation is not created; and

- (b) as are specified in the notice under subregulation (1) of such construction approval.

- (5) Where the Authority grants construction approval of construction work, he shall endorse every page of the approved plans in respect of the notifiable gas installation and—

- (a) retain one set of copies of such plans; and
- (b) forward one set of copies of such plans with the notice under subregulation (1) of such construction approval.

- (6) Where the Authority—

- (a) grants construction approval of construction work subject to conditions; or
- (b) refuses to grant construction approval of construction work,

he shall specify in the notice under subregulation (1) of such grant or refusal of construction approval, as the case may be, his reasons for the imposition of the conditions or the refusal, as the case may be.

6. Approval of use of notifiable gas installation

- (1) Where a person who has been granted construction approval of construction work is of the opinion that the construction work has been completed in accordance with that construction

approval, he may, by notice served on the Authority and accompanied by the prescribed fee—

- (a) state that he is of that opinion; and
 - (b) request the Authority to approve the use of the notifiable gas installation concerned.
- (2) Where the Authority is served a notice under subregulation (1) by a person he shall, not later than 14 working days after such service—
- (a) inspect the notifiable gas installation concerned; and
 - (b) if, after such inspection—
 - (i) he is of the same opinion as that stated in that notice, by notice served on that person approve the use of that installation subject to such conditions, if any, as he thinks fit; and
 - (ii) he is not of that opinion, by notice served on that person refuse to approve the use of that installation.
- (3) Where the Authority—
- (a) approves the use of a notifiable gas installation subject to conditions; or
 - (b) refuses to approve the use of a notifiable gas installation, he shall specify in the notice under subregulation (2) of such approval, or refusal to approve, the use of the notifiable gas installation, his reasons for the imposition of the conditions or the refusal, as the case may be.
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Part IIA

Safety and Inspection of Notifiable Gas Installations

(Part IIA added 22 of 1996 s. 7)

6A. Application

This Part applies to a notifiable gas installation whether or not it was constructed before, on or after the commencement* of this Part.

Editorial Note:

* Commencement date: 24 May 1996.

6B. General duty of owner of notifiable gas installation to maintain, etc. installation in safe condition

Without prejudice to the operation of any other provisions of these regulations in relation to a notifiable gas installation (howsoever described), the owner of the installation shall maintain and operate the installation in a safe condition for the prevention of fire, explosion or other danger arising from the installation.

6C. Inspections to be carried out by owner of notifiable gas installation

- (1) The Authority may, by notice in the Gazette, specify—
 - (a) the inspections which the owner of a notifiable gas installation specified in the notice, or belonging to a class of notifiable gas installations specified in the notice, shall carry out on the installation to ascertain whether the installation is maintained and operated in accordance with regulation 6B;

- (b) the intervals at which, or the circumstances in which, such inspections shall be carried out;
 - (c) the written records which shall be kept of such inspections by such owners and the periods for which any such records shall be retained by such owners;
 - (d) the copies of any such records to be submitted to the Authority by such owners and the periods within which any such records are to be so submitted after they have been made.
- (2) The owner of a notifiable gas installation shall—
 - (a) comply with the requirements of any notice under subregulation (1) applicable to him;
 - (b) if required to carry out any inspection specified in the notice, ensure that the inspection is carried out by—
 - (i) a person who is competent, by virtue of his training and substantial practical experience, to carry out that inspection; or
 - (ii) a person who is under the supervision of a person referred to in subparagraph (i).

Part III

Requirements for Containers

7. Only approved containers may be used to contain liquefied petroleum gas

- (1) Subject to subregulation (2), the owner of a container shall not use the container to contain liquefied petroleum gas unless the container— *(22 of 1996 s. 7)*
 - (a) has been approved in writing, or is of a type which has been approved in writing, by the Authority for such use; or
 - (b) is of a type which has been approved under regulation 64 of the Dangerous Goods (General) Regulations (Cap. 295 sub. leg. B) for such use and such approval was in force immediately before the commencement* of the Ordinance. *(E.R. 5 of 2022)*
- (2) Where the Authority is satisfied that a container to which subregulation (1)(a) or (b) applies—
 - (a) has shown to be prejudicial to the safety of the members of the public; or
 - (b) has, for any other reason (including its supersession by another type of container), ceased to be of a standard of safety acceptable to the Authority,then the Authority may, by notice in the Gazette, specify a date on and after which the owner of the container shall cease to use the container to contain liquefied petroleum gas. *(22 of 1996 s. 7)*
- (3) No person shall, without reasonable excuse, use a container the subject of a notice under subregulation (2) to contain

liquefied petroleum gas on or after the date specified in the notice as the date on which such use of the container shall cease. (22 of 1996 s. 7)

Editorial Note:

* Commencement date: 1 April 1991.

8. Examinations and inspections to be carried out on cylinders and tanks

- (1) No person shall fill any cylinder with liquefied petroleum gas unless—
 - (a) the cylinder has, immediately prior to such filling, been externally examined for defects, including dents, gouges and corrosion; and
 - (b) the person who has carried out such examination is of the opinion that it is safe for that cylinder to be so filled.
- (2) The owner of a cylinder (other than a disposable cylinder) shall not use the cylinder to contain liquefied petroleum gas unless the cylinder has been tested and examined not less than once in the 5 years period immediately preceding such use to ascertain whether the cylinder is safe to be so used.
- (3) The owner of a tank which is—
 - (a) above ground level; and
 - (b) not covered by sand or earth,shall not use the tank to contain liquefied petroleum gas unless the tank has been tested and examined not less than once in the 10 years period immediately preceding such use to ascertain whether the tank is safe to be so used.
- (4) The owner of a tank which is—
 - (a) below ground level; or
 - (b) above ground level and covered with sand or earth,

shall not use the tank to contain liquefied petroleum gas unless the tank has been tested and examined not less than once— (*L.N. 259 of 1997*)

- (i) in the 10 years period immediately following the first time the tank is so used; and
- (ii) after the expiration of the period referred to in paragraph (i), in the 5 years period immediately preceding such use,

to ascertain whether the tank is safe to be so used.

- (5) The owner of a tank shall keep a written record of the results of any test and examination carried out on the tank pursuant to subregulation (3) or (4) until the tank ceases to be used to contain liquefied petroleum gas.
- (6) Where any test and examination carried out on a tank pursuant to subregulation (3) or (4) shows that the tank is not safe to be used to contain liquefied petroleum gas, the owner of that tank shall not so use the tank unless work has been subsequently carried out on the tank which renders the tank safe to be so used.
- (7) Any test and examination carried out before the commencement* of the Ordinance on—
 - (a) a cylinder, in accordance with regulation 66 of the Dangerous Goods (General) Regulations (Cap. 295 sub. leg. B), shall be deemed to be a test and examination carried out on that cylinder in accordance with subregulation (2); and (*E.R. 5 of 2022*)
 - (b) a tank, in accordance with the terms and conditions endorsed on a licence to store liquefied petroleum gas in that tank granted under the Dangerous Goods Ordinance (Cap. 295), shall be deemed to be a test and examination carried out on that tank in accordance with subregulation (3) or (4), as the case may be.

Editorial Note:

* Commencement date: 1 April 1991.

9. Pressure relief valves fitted to cylinders

The owner of a cylinder which has a water capacity of—

- (a) not less than 40 litres, shall not use the cylinder to contain liquefied petroleum gas unless the cylinder is fitted with a pressure relief valve—
 - (i) of the spring-loaded, or equivalent, type; and
 - (ii) in contact with the vapour space of the cylinder when it is positioned for normal use;
- (b) less than 40 litres, shall not, subject to paragraph (c), use the cylinder to contain liquefied petroleum gas if the cylinder is fitted with a pressure relief valve unless the cylinder has—
 - (i) been used to contain such gas before the commencement* of the Ordinance; and
 - (ii) not been re-valved on or after that commencement; and
- (c) less than 40 litres, shall not use the cylinder to provide—
 - (i) liquefied petroleum gas to a dim sum trolley; or
 - (ii) such gas in liquid form,unless the cylinder is fitted with a pressure relief valve.

Editorial Note:

* Commencement date: 1 April 1991.

10. Filling capacity of tanks and cylinders

- (1) The owner of a tank shall not set a fixed maximum level

device fitted to the tank other than at a setting such that, at a temperature of—

- (a) 47.5 degrees centigrade, the tank will not be more than 97% full of liquefied petroleum gas in liquid form; and
 - (b) 52.5 degrees centigrade, the tank will not be full of liquefied petroleum gas in liquid form.
- (2) No person shall fill a tank or cylinder with liquefied petroleum gas other than such that, at a temperature of—
- (a) 47.5 degrees centigrade, the tank will not be more than 97%, and the cylinder will not be more than 95%, full of liquefied petroleum gas in liquid form; and
 - (b) 52.5 degrees centigrade, the tank or cylinder will not be full of liquefied petroleum gas in liquid form.

11. Requirements for liquefied petroleum gas storage installations

The owner of a liquefied petroleum gas storage installation shall ensure that—

- (a) the installation is well-ventilated;
- (b) the installation is accessible for—
 - (i) the replacement and maintenance of the tanks or cylinders which comprise the installation; and
 - (ii) fire-fighting purposes in the event of a fire in or near the installation;
- (c) any safety feature provided for the installation, being a radiation wall, fixed water drenching system or diversion kerb, together with the distances between the tanks or cylinders which comprise the installation and any—
 - (i) property boundary;
 - (ii) fixed source of ignition; or

- (iii) building other than the building in which the installation is situated,
are such that—
 - (A) the risk of any liquefied petroleum gas escaping from the installation being ignited before being dispersed or diluted is, so far as is practicable, minimized; and
 - (B) the installation is protected against the radiation effects of any fire occurring outside the installation;
- (d) ventilation and explosion relief measures other than explosion relief panels are provided for the installation; and
- (e) where the installation is part of a piped gas supply system and more than one tank or cylinder which comprises the installation is at any one time providing liquefied petroleum gas to such system by means of flexible gas tubing connected to a common manifold, the installation has incorporated in it safety devices which will ensure that if such tubing between one such tank or cylinder and the common manifold fails, such failure does not cause the complete loss of such gas from any other tank or cylinder which is connected by such tubing to such manifold.

12. Requirements for tanks

- (1) The owner of a tank which is placed—
 - (a) below ground level; or
 - (b) above ground level and covered with sand or earth,shall not use the tank to contain liquefied petroleum gas unless the tank—
 - (i) is covered with a coating material—

- (A) bonded to all external surfaces of the tank; and
 - (B) which will protect the tank against corrosion; and
 - (ii) is fitted with a cathodic protection system together with a test point for such system.
- (2) The owner of a tank which is fitted with a cathodic protection system as required by subregulation (1)(ii) shall cause such system to be tested not less than once in each 6 months period and the results of such test to be recorded in writing and retained until the tank ceases to be used to contain liquefied petroleum gas. (*L.N. 350 of 1990*)
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Part IV

Requirements for Vaporisers

13. Provision of shut-off valves for vaporisers

No person shall use any vaporiser to vaporise liquefied petroleum gas unless shut-off valves have been fitted to each liquid or vapour line between the vaporiser and the container for which it is provided.

14. Testing and examination of vaporisers

- (1) The owner of a vaporiser shall not use the vaporiser to vaporise liquefied petroleum gas unless the vaporiser has been tested and examined not less than once—
 - (a) in the case of a direct-fired vaporiser, within the 12 months period immediately preceding such use; and
 - (b) in the case of any other vaporiser, within the 5 years period immediately preceding such use,to ascertain whether the vaporiser is safe to be so used.
- (2) The owner of a vaporiser shall keep a written record of the results of any test and examination carried out on the vaporiser pursuant to subregulation (1) until the vaporiser ceases to be used to vaporise liquefied petroleum gas.
- (3) Where any test and examination carried out on a vaporiser pursuant to subregulation (1) shows that the vaporiser is not safe to be used to vaporise liquefied petroleum gas, the owner of that vaporiser shall not so use the vaporiser unless work has been subsequently carried out on the vaporiser which renders the vaporiser safe to be so used.

- (4) Any test and examination carried out before the commencement* of the Ordinance on a vaporiser provided for a gas installation, in accordance with the terms and conditions endorsed on a licence to store liquefied petroleum gas in that gas installation granted under the Dangerous Goods Ordinance (Cap. 295), shall be deemed to be a test and examination carried out on that vaporiser in accordance with subregulation (1).

Editorial Note:

* Commencement date: 1 April 1991.

Part V

Requirements for Gas Pipes and Pressure-Regulating Installations

15. Application

For the purposes of this Part, *gas pipe* (氣體喉管) shall not include an installation pipe.

16. Only competent persons to carry out work on or in relation to gas pipes

No person shall carry out any work on or in relation to a gas pipe unless he is—

- (a) competent, by virtue of his training and substantial practical experience, to carry out that work; or
- (b) under the supervision of a person to whom paragraph (a) applies.

17. General safety requirements for gas pipes

- (1) No person shall install a gas pipe unless the pipe is—
 - (a) constructed of sound materials; and
 - (b) in relation to the type, and operating pressure, of the gas to be conveyed therein, of such size and strength as to safely convey such gas at such pressure.
- (2) No person shall install a gas pipe other than—
 - (a) in a sound and workmanlike manner; and
 - (b) so that any joint therein is gastight.
- (3) No person shall install a gas pipe unless—

- (a) its external surfaces are constructed of material which is inherently resistant to corrosion or are protected against corrosion; and
 - (b) where there is a risk of corrosion to its internal surfaces, such surfaces are, so far as is reasonably practicable, protected against corrosion.
- (4) No person shall install a gas main for the conveyance of liquefied petroleum gas along or across a road.
- (5) No person shall install a gas pipe in any location where it may be subject to—
 - (a) abnormal mechanical loading; or
 - (b) rapid deterioration,unless it is protected from any adverse effects of such loading or deterioration.
- (6) No person shall install a service pipe—
 - (a) of internal diameter of 50 millimetres or more in any premises;
 - (b) in any premises where the nature of the premises or any activity carried on therein is such that there is a special risk of personal injury, fire, explosion or other danger arising from the supply of gas to such premises; or
 - (c) in any premises where such pipe supplies gas to more than one primary meter,unless he also fixes a valve in the pipe in a readily accessible position outside of, but as near as practicable to, the boundaries of the premises concerned and in such a manner that, so far as is reasonably practicable, there is not a risk of wilful or accidental misuse of the valve.

- (7) No person shall install a gas pipe above the ground unless it is protected to ensure, so far as is reasonably practicable, that there is not a risk of accidental damage to the pipe.
- (8) No person shall install a gas pipe in a service duct in any premises unless any other services contained in the duct are compatible with that pipe in a that safety of the occupants of the premises is not thereby prejudiced.
- (9) Subject to subregulation (10), no person shall install a service pipe in a service duct in any premises unless such duct is ventilated such that any escape of gas from any part of such pipe enclosed by such duct is able to disperse in such a manner that safety of the occupants of the premises is not thereby prejudiced.
- (10) No person shall install a service riser in—
 - (a) domestic premises; or
 - (b) non-domestic premises (other than non-domestic premises in which an industrial undertaking within the meaning of the Factories and Industrial Undertakings Ordinance (Cap. 59) is being carried out) in respect of which the Building Authority, within the meaning of the Buildings Ordinance (Cap. 123), has given his approval (including a deemed approval) under that Ordinance for the building works thereof on or after 1 January 1991, unless—
 - (i) the service riser is installed in a service duct; and
 - (ii) such duct is ventilated such that any escape of gas from any part of such riser enclosed by such duct disperses to air outside the premises concerned.

18. Enclosed gas pipes

- (1) No person shall install any part of a gas pipe through a floor

or standing of solid construction unless the pipe is enclosed in a sleeve which does not prevent the normal movement of the pipe.

- (2) No person shall install any part of a gas pipe through a wall of solid construction unless, so far as is reasonably practicable, the pipe is so constructed and installed as to be protected against failure caused by movement.
- (3) No person shall install any part of a gas pipe in the cavity of a cavity wall unless the pipe—
 - (a) is to pass through the wall from one side to the other by the shortest practicable route; and
 - (b) is enclosed in a gastight sleeve which—
 - (i) prevents, so far as is reasonably practicable, gas passing along any space between—
 - (A) the pipe and the sleeve; and
 - (B) the sleeve and the cavity wall; and
 - (ii) does not prevent the normal movement of the pipe.

19. Protection of premises

No person shall install a gas pipe in a way which would impair the structure of any premises or impair the fire resistance of any part of its structure.

20. Pressure tests on gas pipes, etc.

- (1) A person who installs a gas pipe shall, forthwith after such installation and before the pipe is commissioned, carry out a pressure test on such pipe to ensure that it is structurally sound and gastight.
- (2) A person who carries out a pressure test required under subregulation (1) on a gas pipe shall ensure that precautions have been taken to protect—

- (a) the persons carrying out such test;
 - (b) any persons working in the vicinity of the place where such test is being carried out; and
 - (c) members of the public,
- against any dangers which may arise if such pipe should fail the test.
- (3) Upon the completion of any pressure test required under subregulation (1), the person who carried out that test shall, as soon as is reasonably practicable, reduce to zero the pressure in the gas pipe in respect of which such test was carried out.

21. General safety requirements for pressure-regulating installations

- (1) Subject to subregulation (2), no person shall install a pressure-regulating installation in a gas supply system unless—
- (a) the installation is so designed that the malfunction of any part thereof, where there is no other malfunction at the same time of any other part thereof, does not cause an unsafe situation to arise in respect of the pressure of the gas supplied downstream of that installation;
 - (b) any pressure-regulators or auxiliary systems used in connection with the installation are protected from any dust or debris carried by the gas supplied through the installation;
 - (c) where the difference in pressure between the gas supplied to the installation and the gas supplied by the installation is such that the temperature of the gas may fall below 0° centigrade, the installation is protected against damage which may be caused by the formation of ice inside or outside the installation;

- (d) the volumetric capacity of the installation is such that it can take, at the lowest pressure at which gas will be supplied to it, and transmit, at the highest pressure at which it will supply gas, the volume of gas required for the gas supply system of which it is a part; and
 - (e) where a by-pass is fitted to the installation, devices are also fitted to the installation to ensure that if there is a mal-operation of any valve fitted to that by-pass, an unsafe situation does not arise in respect of the pressure of the gas supplied downstream of that installation.
- (2) Subregulation (1) shall not apply to a pressure-regulating installation which will not be supplied with gas at a pressure other than low pressure.

22. Location of pressure-regulating installations

- (1) Subject to subregulation (4), no person shall install a pressure-regulating installation at a location other than such that—
 - (a) any gas released from any relief valve used in connection with the installation will be safely dispersed;
 - (b) there is reasonable access for the purpose of carrying out maintenance on the installation;
 - (c) the installation will, so far as is reasonably practicable, not be subject to flooding, subsidence or other natural hazards unless it is, so far as is reasonably practicable, protected from damage which may be caused to it thereby; and
 - (d) if it is located near a road, it is, so far as is reasonably practicable, protected against damage to it which may arise from a traffic accident on that road.

- (2) No person shall install a pressure-regulating installation in a room in any premises (and irrespective of whether there is any other room in the premises) unless—
- (a) there is sufficient space within the room to permit maintenance of the installation;
 - (b) there is sufficient means of egress from the room to permit, so far as is reasonably practicable, the escape of personnel from the room if the installation becomes unsafe;
 - (c) each common wall of that room is gastight;
 - (d) each wall of that room is of solid construction;
 - (e) the room is well-ventilated; and
 - (f) explosion relief measures other than explosion relief panels are provided in the room.
- (3) No person shall install a pressure-regulating installation in a location below the ground unless—
- (a) the location is not subject to flooding or, if the location is subject to flooding, the pressure-regulator breathers used in connection with the installation are extended above the level at which flooding is likely to occur such that water will not enter the diaphragm chambers of the installation; and
 - (b) the location is in the form of a pit which is so designed and constructed that—
 - (i) it (and any surface covering) is able to withstand any expected surface loading without damage to the installation;
 - (ii) the ingress of surface water is prevented or, if not prevented, will not damage the installation; and

(iii) means are provided to permit access for maintenance and ventilation of the pit.

- (4) Subregulation (1) shall not apply to a pressure-regulating installation which will not be supplied with gas at a pressure other than low pressure.

23. Purging, etc. of gas pipes

- (1) No person shall commission, recommission or decommission any gas pipe except by a purging procedure which ensures, so far as is reasonably practicable, that—
- (a) the persons carrying out such purging, any persons working in the vicinity of the place where such purging is being carried out and members of the public are protected against any dangers which may arise from such purging;
 - (b) the risk of an explosive mixture of gas and air arising in such pipe is minimized; and
 - (c) in the case of the commissioning or recommissioning of such pipe, no air or inert gas remains in such pipe after such purging which may cause an unsafe situation to arise in respect of the continuity of the gas supplied downstream of such pipe.
- (2) Where a gas pipe through which gas is supplied has the pressure of such gas reduced to zero, no person shall—
- (a) carry out any work on such pipe; or
 - (b) recommission such pipe,
- unless such pipe has been purged of such gas.
- (3) For the purposes of this regulation, **gas pipe** (氣體喉管) includes any gas fitting—
- (a) used in connection with a gas pipe; and

(b) through which gas may flow.

23A. Works in the vicinity of gas pipes

- (1) No person shall carry out, or permit to be carried out, any works in the vicinity of a gas pipe unless he or the person carrying out the works has, before commencing the works, taken all reasonable steps to ascertain the location and position of the gas pipe.
- (2) A person who carries out, or permits to be carried out, any works in the vicinity of a gas pipe shall ensure that all reasonable measures are taken to protect the gas pipe from damage arising out of the works that would be likely to prejudice safety.

(L.N. 455 of 1996)

Part VI

Gas Vehicles

24. *(Repealed 29 of 2021 s. 12)*

25. Only certain motor vehicles may carry liquefied petroleum gas

- (1) No person shall use a motor vehicle to carry liquefied petroleum gas in bulk on a road unless—
 - (a) the vehicle is a road tanker; and
 - (b) there is a valid permit issued in respect of the tanker.
- (2) No person shall use a motor vehicle to carry on a road—
 - (a) any cylinder which has a water capacity of not less than 130 litres; or
 - (b) any combination of cylinders which have a combined water capacity of not less than 130 litres,
unless—
 - (i) the vehicle is a cylinder wagon; and
 - (ii) there is a valid permit issued in respect of the wagon.

26. Application for and issue of permit

- (1) Subject to this regulation, the Authority may, upon payment of the prescribed fee, issue a permit—
 - (a) to the owner of a road tanker which complies with the conditions specified in Part 1 of Schedule 2 authorizing the use of the tanker to carry liquefied petroleum gas in bulk on roads; or
 - (b) to the owner of a cylinder wagon which complies with the conditions specified in Part 2 of Schedule 2

authorizing the use of the vehicle to carry cylinders on roads.

- (2) An application for a permit shall be—
 - (a) made by—
 - (i) the owner of the gas vehicle in respect of which the permit is sought; or
 - (ii) a person authorized in writing by the owner in that behalf; and
 - (b) in the approved form, and accompanied by—
 - (i) such documents relating to that vehicle as are—
 - (A) specified in that form; and
 - (B) required for the purpose of the Authority determining whether that vehicle complies with the relevant conditions specified in Schedule 2; and
 - (ii) proof, satisfactory to the Authority, of the ownership of that vehicle.
- (3) The Authority shall refuse to issue a permit in respect of a gas vehicle if—
 - (a) subregulation (2) is not complied with in respect of the application for the permit;
 - (b) the owner of the vehicle does not produce it for examination by an inspector in such place and at such time as the Authority specifies; or
 - (c) the vehicle is found on examination not to comply with the relevant conditions specified in Schedule 2.
- (4) Where the Authority refuses to issue a permit in respect of a gas vehicle, he shall by notice served on the owner of the vehicle inform him of that refusal and of the reasons therefor.

27. Form and particulars of permit

A permit shall—

- (a) be in the approved form; and
- (b) contain the particulars specified in Schedule 3.

28. Permit subject to conditions

- (1) A permit issued in respect of a gas vehicle may be issued subject to such reasonable conditions as the Authority thinks fit and as are specified in the permit.
- (2) The Authority may at any time add to, vary or revoke any conditions specified by him under subregulation (1) in a permit and shall amend the permit accordingly.
- (3) No person shall use a gas vehicle in contravention of any condition specified in the permit issued in respect of the vehicle.

29. Validity of permit

A permit issued in respect of a gas vehicle shall cease to be valid—

- (a) upon the expiry of one year less one day after the date of its issue or last renewal, as the case may be, unless renewed under regulation 30;
- (b) if the owner of the vehicle specified in the permit ceases to be such owner;
- (c) if the vehicle is abandoned or destroyed; or
- (d) if the permit is cancelled under regulation 31.

30. Renewal of permit

- (1) Subject to subregulation (2), the Authority may, upon—

- (a) application to him in the approved form by the owner of a gas vehicle or a person authorized in writing by the owner in that behalf; and
 - (b) payment of the prescribed fee,
- renew a valid permit issued in respect of the vehicle.
- (2) Regulation 26(2), (3) and (4) shall apply to an application to renew a permit in the like manner as it applies to an application for a permit.

31. Cancellation of permit

- (1) The Authority may, by notice served on the owner of a gas vehicle, cancel a permit issued in respect of the vehicle if the vehicle is found on examination not to comply with the relevant conditions specified in Schedule 2.
- (2) The owner of a gas vehicle who is served with a notice under subregulation (1) shall return the permit cancelled by that notice forthwith to the Authority.

32. Notification of change of ownership, etc.

The owner of a gas vehicle in respect of which a permit has been issued shall, if—

- (a) he ceases to be such owner; or
- (b) the vehicle is abandoned or destroyed,

within 7 days thereafter inform the Authority of such fact, giving such details as the Authority requires, and shall at the same time return the permit to the Authority.

33. Permit to be produced

The owner of a gas vehicle in respect of which a permit has been issued shall produce the permit for—

- (a) amendment pursuant to regulation 28(2), when so requested by the Authority; or
- (b) inspection, when so requested by the Authority, an inspector or a police officer,

as soon as it is reasonably practicable to do so.

34. Issue and display of label

- (1) The Authority shall, at the same time as he issues or renews a permit in respect of a gas vehicle, issue to the owner of the vehicle a label specifying—
 - (a) the number of that permit; and
 - (b) the date of expiry of that permit.
- (2) Subject to subregulation (3), no gas vehicle in respect of which a permit has been issued shall be used on a road unless the label issued with that permit is displayed on the left-hand side of the vehicle's windscreen in such a manner that it is clearly visible from the front of the vehicle.
- (3) Where a permit issued in respect of a gas vehicle ceases to be valid under regulation 29, the label issued with that permit shall forthwith be removed from the windscreen of the vehicle.

35. Alterations to gas vehicle

No material alteration in—

- (a) the design or construction; or
- (b) the relevant equipment specified in Schedule 2,

of a gas vehicle in respect of which a permit has been issued shall be made without the permission in writing of the Authority.

36. Examination of gas vehicle

- (1) The Authority may at any time require the production for examination by an inspector of any gas vehicle in respect of which—
 - (a) an application for a permit has been made under regulation 26; or
 - (b) a permit has been issued,
in such place and at such time as he specifies by notice in writing served on the owner of the vehicle.
- (2) Without prejudice to the generality of subregulation (1), an inspector or a police officer may at any time require the owner or driver of a gas vehicle in respect of which a permit has been issued to produce the vehicle for examination by an inspector in such place and at such time as the inspector or police officer, as the case may be, specifies.
- (3) The purpose of an examination referred to in subregulation (1) or (2) shall be to ascertain whether a gas vehicle complies with these regulations and any conditions of any permit issued in respect of the vehicle.
- (4) A gas vehicle produced at any place pursuant to a requirement under this regulation may be detained for a period not exceeding—
 - (a) 24 hours in the case of a requirement under subregulation (1); or
 - (b) 6 hours in the case of a requirement under subregulation (2),
while the vehicle is examined.

37. Powers of inspector

In carrying out an examination of a gas vehicle for the purposes of these regulations, an inspector may—

- (a) carry out or cause to be carried out such inspection, examination or test of the vehicle or any equipment of the vehicle as he thinks fit;
- (b) weigh the vehicle or any load on the vehicle; and
- (c) photograph the vehicle.

38. Certain equipment to be carried on gas vehicle

- (1) No person shall use a road tanker to carry liquefied petroleum gas in bulk unless there is carried on the tanker—
 - (a) not less than 2 suitable apparatus for extinguishing fire—
 - (i) of a type, and of a capacity not less than that, specified by the Authority by notice in the Gazette for the purposes of this regulation;
 - (ii) each carried in such a position as to be readily accessible outside the cab of the tanker and available for use; and
 - (iii) maintained at all times in good and efficient working order;
 - (b) not less than 2 signs each displaying a notice, in the English and Chinese languages, in letters and characters not less than 120 millimetres in height, stating the words “NO SMOKING” and the characters “不准吸煙”;
 - (c) not less than one set of protective goggles, or other suitable equipment for the protection of eyesight, and gloves for each person employed on the tanker; and
 - (d) not less than 4 road cones.
- (2) No person shall use a cylinder wagon to carry cylinders unless there is carried on the wagon not less than 2 suitable apparatus for extinguishing fire—

- (a) of a type, and of a capacity not less than that, specified by the Authority by notice in the Gazette for the purposes of this regulation;
- (b) each carried in such a position as to be readily accessible outside the cab of the wagon and available for use; and
- (c) maintained at all times in good and efficient working order.

39. Only competent persons to be employed on gas vehicle

- (1) No person shall carry out any operation in relation to—
 - (a) the use of a road tanker which is carrying liquefied petroleum gas; or
 - (b) the loading into or discharge from a road tanker of liquefied petroleum gas,

unless the person carrying out the operation is competent, by virtue of his training and substantial practical experience, to carry out that operation (or is under the supervision of such a person) and, without prejudice to the generality of the foregoing, such training shall include training in—

 - (i) the properties of liquefied petroleum gas;
 - (ii) the use of the apparatus referred to in regulation 38(1)(a) carried on the tanker; and
 - (iii) the procedures to be followed in the event of an emergency involving the tanker.
- (2) The owner of a road tanker shall ensure that not less than 2 persons who are competent as required by subregulation (1) are employed on the tanker at all times when—
 - (a) the tanker is carrying liquefied petroleum gas; and
 - (b) liquefied petroleum gas is being loaded into or discharged from the tanker.

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- (3) No person shall discharge liquefied petroleum gas from a road tanker unless, at all times during that operation, the signs referred to in regulation 38(1)(b) are prominently displayed near the tanker.
- (4) Each person employed on a road tanker shall, at all times when liquefied petroleum gas is being loaded into or discharged from the tanker—
- (a) be not more than 50 metres from the tanker; and
 - (b) have ready access to the tanker.
- (5) No person shall carry out any operation in relation to—
- (a) the use of a cylinder wagon which is carrying cylinders; or
 - (b) the loading into or unloading off a cylinder wagon of cylinders,
- unless the person carrying out the operation is competent, by virtue of his training and substantial practical experience, to carry out that operation and, without prejudice to the generality of the foregoing, such training shall include training in—
- (i) the properties of liquefied petroleum gas;
 - (ii) the use of the apparatus referred to in regulation 38(2) carried on the wagon; and
 - (iii) the procedures to be followed in the event of an emergency involving the wagon.
- (6) The owner of a cylinder wagon shall ensure that not less than 2 persons who are competent as required by subregulation (5) are employed on the wagon at all times when either— (*L.N. 462 of 1995*)
- (a) the wagon is in motion and carrying cylinders on a road; or (*L.N. 462 of 1995*)

(b) cylinders are being loaded into or unloaded off the wagon.

(7) No person shall unload off a cylinder wagon a cylinder which has a water capacity of 50 litres or more except by—

(a) a tail-gate lift; or

(b) a method approved by the Authority by notice in the Gazette.

40. Safety device to be used when liquefied petroleum gas is discharged from road tanker

(1) No person shall discharge liquefied petroleum gas from a road tanker into a liquefied petroleum gas receiving installation unless a safety device which complies with subregulation (2) is fitted to the tanker or the installation to protect against the dangers which may arise due to the movement of the tanker whilst the liquefied petroleum gas transfer hoses are connected between the tanker and the installation.

(2) The safety device referred to in subregulation (1) shall—

(a) be maintained at all times in good and efficient working order;

(b) be automatic in operation; and

(c) when in operation—

(i) protect the liquefied petroleum gas transfer hoses to which it is connected from rupture or other damage; and

(ii) release not more than 0.1 litres of liquefied petroleum gas in liquid form.

41. Special precautions against fire and explosion

(1) No person carrying out any operation referred to in regulation 39(1)(a) or (b) or (5)(a) or (b) shall—

- (a) smoke; or
 - (b) carry any naked flame.
- (2) No person shall place or carry on a gas vehicle—
 - (a) subject to paragraph (b), any artificial light other than a light which is not liable by virtue of its construction to ignite flammable vapour;
 - (b) any artificial light which is liable to ignite flammable vapour unless it is permanently fixed to a part of the vehicle which is not likely to come into contact with flammable vapour; or
 - (c) any explosive substance or article capable of causing a fire or explosion, including matches and cigarette lighters.
- (3) No person shall place any goods in the cargo compartment of a cylinder wagon at any time when there is any cylinder in that compartment.

42. Inspections to be carried out by owner of gas vehicle

- (1) The Authority may, by notice in the Gazette, specify—
 - (a) the inspections which the owner of a gas vehicle in respect of which a permit has been issued shall carry out on the vehicle or on any equipment required by these regulations to be carried on the vehicle;
 - (b) the intervals at which, or the circumstances in which, such inspections shall be carried out; and
 - (c) the written records which shall be kept of such inspections by such owners and the periods for which any such records shall be retained by such owners.
- (2) The owner of a gas vehicle shall comply with the requirements of any notice under subregulation (1) applicable to him.

- (3) Where an inspection carried out on a gas vehicle, whether pursuant to a notice under subregulation (1) or otherwise, shows that it is unsafe, the owner of the vehicle shall forthwith carry out work to render it safe or, if that is not practicable, shall not use it to carry, in the case of a gas vehicle which is a road tanker, liquefied petroleum gas in bulk and, in the case of a gas vehicle which is a cylinder wagon, cylinders.
- (4) Where an inspection carried out on any equipment referred to in subregulation (1), whether pursuant to a notice under that subregulation or otherwise, shows that it is unsafe, the owner of the gas vehicle concerned shall forthwith—
 - (a) carry out work to render the equipment safe; or
 - (b) replace it with equipment which is safe.

43. Duplicate permit, etc.

- (1) Where any permit has been lost, defaced or destroyed, the Authority may, upon payment of the prescribed fee, issue to the owner of the gas vehicle in respect of which the permit was issued a duplicate permit in place thereof, and the duplicate permit so issued shall have the same effect as the original permit.
- (2) Subregulation (1) shall apply to a label in the like manner as it applies to a permit.

44. Other laws applicable to motor vehicles not affected

The provisions of this Part shall not affect any other law in relation to motor vehicles.

44A. Power to amend Schedules 2 and 3

The Secretary may, by notice in the Gazette, amend Schedule 2 or 3.

Gas Safety (Gas Supply) Regulations

Part VI

6-26

Regulation 44A

Cap. 51B

(22 of 1996 s. 7)

Part VII

Appeals

45. Appeals to appeal board

- (1) Any person aggrieved by a decision of the Authority under—
 - (a) regulation 5(1)(b) or (c);
 - (b) regulation 6(2)(b)(i) in any case where regulation 6(3)(a) applies;
 - (c) regulation 6(2)(b)(ii); or
 - (d) regulation 26(3),may appeal to an appeal board against that decision.
- (2) An appeal under this regulation shall—
 - (a) be in writing;
 - (b) set out the details of or be accompanied by the notice under regulation 5(1), 6(2) or 26(4) concerned;
 - (c) be commenced within 30 days after the decision appealed against was made; and
 - (d) be delivered to the Secretary.
- (3) A person who appeals under this regulation shall deliver to the Authority notice of, and the grounds for, the appeal.
- (4) A decision referred to in subregulation (1) shall take effect immediately, notwithstanding that an appeal has been or may be made under this regulation against that decision.

Part VIII

Miscellaneous

46. Removal of liquefied petroleum gas in contravention of regulations

Where any liquefied petroleum gas is possessed, landed, shipped, transhipped, stored or otherwise dealt with, or where any vessel carrying any such gas is berthed or has anchored or stopped contrary to any requirement under the Ordinance, the Authority, or any other person acting under the orders of the Authority, may cause such gas (including any container of such gas), or such vessel to be removed, at the expense of the owner of such gas or vessel, as the case may be, to such place as may be in conformity with such requirement, and all expenses incurred in such removal may be recovered from such owner in like manner, in all respects, as a sum of money due or payable to the Government in respect of a fee is recoverable.

47. Valve connection of cylinder to be in contact with vapour space

- (1) Subject to subregulation (2), no person shall use, transport or store a cylinder which contains or has contained liquefied petroleum gas in any manner which prevents the valve connection of the cylinder from being in contact with the vapour space of the cylinder.
- (2) Subregulation (1) shall not apply to a cylinder which is used to supply liquefied petroleum gas to a fork-lift truck.

48. Regulation of pressure between cylinder and gas appliance

- (1) Subject to subregulation (2), no person shall use a cylinder to supply liquefied petroleum gas to a gas appliance unless a

pressure-regulator, set at the pressure at which that appliance is designed to receive gas, is fitted to the—

- (a) valve connection of the cylinder; or
 - (b) installation pipe between the cylinder and the appliance.
- (2) Subregulation (1) shall not apply to a cylinder and gas appliance combination which is designed to be used without a pressure-regulator.

49. Offences

- (1A) Any person who contravenes regulation 23A commits an offence and is liable on conviction—
- (a) in the case of a contravention of regulation 23A(1), to a fine at level 4 and to imprisonment for 6 months;
 - (b) in the case of a contravention of regulation 23A(2), to a fine of \$200,000 and to imprisonment for 12 months and, in the case of a continuing offence, to a daily penalty of \$10,000. (*L.N. 455 of 1996*)
- (1) Any person who contravenes regulation 3(1) or (2), 6B or 25(1) or (2) commits an offence and is liable on conviction to a fine at level 4 and to imprisonment for 6 months and, in the case of a continuing offence, to a daily penalty of \$2,000. (*22 of 1996 s. 7*)
- (1AA) The owner of a notifiable gas installation who contravenes regulation 6C(2)(a) or (b) commits an offence and is liable on conviction to a fine at level 2. (*22 of 1996 s. 7*)
- (2) Any person who contravenes any condition to which—
- (a) a construction approval is subject under regulation 5(1)(b) or (4); or
 - (b) an approval is subject under regulation 6(2)(b)(i),

commits an offence and is liable on conviction to a fine at level 3 and, in the case of a continuing offence, to a daily penalty of \$1,000.

- (3) The owner of a container who contravenes regulation 7(1) or (3), the owner of a cylinder who contravenes regulation 8(2), the owner of a tank who contravenes regulation 8(3), (4) or (6), 10(1) or 12(1), the owner of a liquefied petroleum gas storage installation who contravenes regulation 11 and the owner of a vaporiser who contravenes regulation 14(1) or (3) commits an offence and is liable on conviction to a fine at level 3 and, in the case of a continuing offence, to a daily penalty of \$1,000. (*22 of 1996 s. 7*)
- (4) Any person who contravenes regulation 8(1), 10(2), 17(1), (2), (3), (4), (5), (6)(a) or (c), (7), (8), (9) or (10), 18(1), (2) or (3), 19, 20(1), (2) or (3), 28(3), 39(1), (3), (4), (5) or (7) or 41(2) commits an offence and is liable on conviction to a fine at level 2.
- (5) The owner of a tank who contravenes regulation 8(5) or 12(2), the owner of a cylinder who contravenes regulation 9 and the owner of a vaporiser who contravenes regulation 14(2) commits an offence and is liable on conviction to a fine at level 2 and, in the case of a continuing offence, to a daily penalty of \$500.
- (6) Any person who contravenes regulation 13 or 41(3) commits an offence and is liable on conviction to a fine at level 1.
- (7) Any person who, without reasonable excuse, contravenes regulation 16, 17(6)(b), 23(1) or (2) or 38(1) or (2) commits an offence and is liable on conviction to a fine at level 2.
- (8) Any person who contravenes regulation 21(1), 22(1), (2) or (3), 40(1) or 41(1) commits an offence and is liable on conviction to a fine at level 3.

- (9) The owner of a gas vehicle who, without reasonable excuse, contravenes regulation 31(2), 32 or 33 commits an offence and is liable on conviction to a fine at level 1 and, in the case of a continuing offence, to a daily penalty of \$100.
- (10) Where regulation 34(2) or (3) is contravened in respect of a gas vehicle, the owner of the vehicle commits an offence and is liable on conviction to a fine at level 1 and, in the case of a continuing offence, to a daily penalty of \$100.
- (11) Where regulation 35 is contravened in respect of a gas vehicle, the owner of the vehicle commits an offence and is liable on conviction to a fine at level 2.
- (12) The owner of a gas vehicle who, without reasonable excuse, contravenes regulation 36(1) (where paragraph (b) of that regulation applies) or (2), or the driver of a gas vehicle who, without reasonable excuse, contravenes regulation 36(2) commits an offence and is liable on conviction to a fine at level 1.
- (13) The owner of a road tanker who contravenes regulation 39(2) and the owner of a gas vehicle (except a cylinder wagon) who contravenes regulation 42(3) or (4) commits an offence and is liable on conviction to a fine at level 3.
- (14) The owner of a cylinder wagon who contravenes regulation 39(6), the owner of a gas vehicle who contravenes regulation 42(2) and the owner of a gas vehicle (except a road tanker) who contravenes regulation 42(3) or (4) commits an offence and is liable on conviction to a fine at level 2.
- (15) Any person who, without reasonable excuse, contravenes regulation 47(1) or 48(1) commits an offence and is liable on conviction to a fine at level 1.

(E.R. 5 of 2022)

49A. Defences

- (1) Where a code or codes of practice are in effect in relation to the requirements of regulation 23A(1) or (2), it shall be a defence to a charge under regulation 49 alleging a contravention of that subregulation for the person charged to show that he has complied with the provisions of that code or those codes as regards such requirements.
- (2) It shall be a defence to a charge under regulation 49 alleging a contravention of regulation 23A(2) in relation to works carried out in the vicinity of a gas pipe for the person charged to show that he did not know the location and position of the gas pipe and that—
 - (a) before the works were commenced, he had taken all reasonable steps to ascertain the location and position of any gas pipe in the area of the works; and
 - (b) he could not reasonably have been expected, having regard to the steps so taken, to have known the location and position of the gas pipe,

and for the purposes of paragraph (a), where a code or codes of practice are in effect in relation to the requirements of regulation 23A(1), a person who shows that he has complied with the provisions of that code or those codes as regards such requirements shall be deemed to have shown that he has taken all reasonable steps to ascertain the location and position of any gas pipe in the area of the works.

(L.N. 455 of 1996)

50. Exemptions

- (1) The Authority may exempt in writing any person from any of the provisions of these regulations specified in such exemption—

- (a) where the Authority is of the opinion that the safety of members of the public will not be prejudiced by such exemption; and
 - (b) subject to such reasonable conditions as the Authority thinks fit specified in such exemption.
 - (2) The Authority may by notice in the Gazette exempt any class of persons from any of the provisions of these regulations specified in such exemption—
 - (a) where the Authority is of the opinion that the safety of members of the public will not be prejudiced by such exemption; and
 - (b) subject to such reasonable conditions as the Authority thinks fit specified in such exemption.
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Schedule 1

[reg. 2(1)]

Fees

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1. Fee for application for construction approval of construction work (regulation 4(2)(b)(ii))—
 - (a) in the case of a gas installation referred to in paragraph (a) or (b) of the definition of *notifiable gas installation*.. 21,550
 - (b) in the case of a gas installation referred to in paragraph (c) of the definition of *notifiable gas installation* 10,110
 - (c) in the case of a gas installation referred to in paragraph (d) of the definition of *notifiable gas installation* 7,230
 - (d) in the case of a gas installation referred to in paragraph (e) of the definition of *notifiable gas installation* 3,540
 - (e) in the case of a gas installation referred to in paragraph (f) of the definition of *notifiable gas installation*—
 - (i) where the store is designed to contain not more than 0.25 tonnes of liquefied petroleum gas 2,390
 - (ii) where the store is designed to contain more than 0.25 but not more than 2.5 tonnes of liquefied petroleum gas 4,610
 - (iii) where the store is designed to contain more than 2.5 but not more than 25 tonnes of liquefied petroleum gas 9,010
 - (iv) where the store is designed to contain more than 25 tonnes of liquefied petroleum gas 13,750
 - (f) in the case of a gas installation referred to in paragraph (g) of the definition of *notifiable gas installation* 4,820

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2.	Fee for request for approval to use notifiable gas installation (regulation 6(1)(b))— (<i>L.N. 259 of 1997</i>)	
(a)	in the case of a gas installation referred to in paragraph (a) or (b) of the definition of notifiable gas installation ..	14,580
(b)	in the case of a gas installation referred to in paragraph (c) of the definition of notifiable gas installation	6,520
(c)	in the case of a gas installation referred to in paragraph (d) of the definition of notifiable gas installation	4,960
(d)	in the case of a gas installation referred to in paragraph (e) of the definition of notifiable gas installation	2,120
(e)	in the case of a gas installation referred to in paragraph (f) of the definition of notifiable gas installation —	
(i)	where the store is designed to contain not more than 0.25 tonnes of liquefied petroleum gas	1,560
(ii)	where the store is designed to contain more than 0.25 but not more than 2.5 tonnes of liquefied petroleum gas	3,340
(iii)	where the store is designed to contain more than 2.5 but not more than 25 tonnes of liquefied petroleum gas	6,060
(iv)	where the store is designed to contain more than 25 tonnes of liquefied petroleum gas	9,950
(f)	in the case of a gas installation referred to in paragraph (g) of the definition of notifiable gas installation	2,950
3.	Fee for issue of permit (regulation 26(1))—	
(a)	in the case of a gas vehicle which is a road tanker	10,010
(b)	in the case of a gas vehicle which is a cylinder wagon ..	2,420
4.	Fee for renewal of permit (regulation 30(1))—	
(a)	in the case of a gas vehicle which is a road tanker	3,350
(b)	in the case of a gas vehicle which is a cylinder wagon ..	600
5.	Fee for issue of duplicate permit or label	230

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(L.N. 314 of 1993; L.N. 604 of 1994; L.N. 35 of 1997; L.N. 23 of 1998; L.N. 136 of 1998; E.R. 5 of 2022)

Schedule 2

[regs. 26, 31 & 35]

Conditions to be Complied with before Permit is Issued for Gas Vehicle

Part 1

Road Tankers

1. In this Part, unless the context otherwise requires—
compression ignition engine (壓燃式引擎) means a compression ignition engine within the meaning of the Road Traffic (Construction and Maintenance of Vehicles) Regulations (Cap. 374 sub. leg. A); (*E.R. 5 of 2022*)
overall height (總高度) means overall height within the meaning of the Road Traffic (Construction and Maintenance of Vehicles) Regulations (Cap. 374 sub. leg. A); (*E.R. 5 of 2022*)
vessel (盛器), in relation to a road tanker, means that part of the tanker which is used to contain liquefied petroleum gas in bulk.
2. All equipment of the road tanker shall be in good and efficient working order and in such condition as not to be likely to cause danger to any person upon the tanker or upon a road.
3. The body, chassis and fuel tank of the road tanker and all equipment shall be constructed of non-combustible material.

4. Any combustible material used in the construction of the road tanker shall be flame-resistant.
5. The road tanker shall be not more than 4.1 metres in overall height.
6. The vessel of the road tanker shall—
 - (a) be of a design pressure which includes an allowance to accommodate stresses due to horizontal and vertical acceleration and retardation likely to be encountered in operation;
 - (b) where the vessel has a water capacity of more than 5 000 litres, be fitted with baffle plates designed, so far as is practicable, to minimize surge and to allow for complete internal examination of the vessel;
 - (c) be mounted on the tanker in a sound manner;
 - (d) be effectively screened with fire-resisting shields from—
 - (i) the interior of the cab;
 - (ii) the fuel tank;
 - (iii) the electrical generator;
 - (iv) the engine;
 - (v) the batteries, switch gear and fuses; and
 - (vi) the engine exhaust system, of the tanker;
 - (e) be located not less than 150 millimetres distant from the nearest part of the fire-resisting shield which screens the interior of the cab of the tanker; and

- (f) be fitted with quick-closing valves which may be operated by not less than one emergency control fitted to the tanker at a safe distance from the delivery connection.
- 7. All valves, fittings, pumps, pipework and accessories fitted to the road tanker shall be so situated or protected that the risk of damage or leakage of liquefied petroleum gas in the event of the tanker being involved in a traffic accident is, so far as is practicable, minimized.
- 8. Any section of a pipe or hose of the road tanker which may—
 - (a) contain liquid liquefied petroleum gas; and
 - (b) be closed at each end,shall be provided with hydrostatic relief valves to protect that section from bursting due to increase of hydraulic pressure caused by temperature rise likely to be encountered in operation.
- 9. The engine of the road tanker shall be—
 - (a) a compression-ignition engine;
 - (b) provided with an air inlet system which prevents—
 - (i) over-running of the engine to destruction; and
 - (ii) flame propagation due to engine back-fire; and
 - (c) constructed and so situated or protected so as to avoid any danger to any liquefied petroleum gas carried by the tanker.
- 10. The fuel tank of the road tanker shall be—
 - (a) of double case construction;
 - (b) fitted with a lock to the filling hole cover;

- (c) so placed that, in the event of a leak from the tank, fuel can only drain to the ground;
- (d) separated from the cab of the tanker; and
- (e) suitably protected against impact.

11. A means of—

- (a) cutting off the supply of fuel to the engine of the road tanker; and
- (b) stopping that engine,

shall be provided in a position which is—

- (i) outside the cab of the tanker;
- (ii) easily accessible; and
- (iii) identified, in the English and Chinese languages, by a notice prominently and legibly stating—

“EMERGENCY ENGINE STOP

緊急停車掣”.

12. All electrical apparatus in the road tanker shall be so constructed and installed as to guard adequately against the risk of short circuit and the outbreak of fire.

13. All electrical apparatus which is in any enclosed area of the road tanker where an accumulation of liquefied petroleum gas may occur shall be suitable for use Zone 1 areas as defined in British Standard Code of Practice 5345: Part 2: 1983.

14. All electrical apparatus which is not in any enclosed area of the road tanker but is not more than 750 millimetres distant from the vessel of the tanker, or any pressure valve, fixed liquid level gauge, vapour return connection, loading or draw-off connection, or other opening to the vessel, shall be suitable for use in Zone 2 areas as defined in British Standard Code of Practice 5345: Part 2: 1983.
15. The road tanker shall be fitted with—
- (a) no tyres other than anti-static tyres each of which has an electrical resistance which complies with British Standard 2050; or
 - (b) an anti-static chain so that one end of the chain is effectively secured to the chassis of the tanker and the other end of the chain touches the ground.
16. The road tanker shall prominently and legibly display, in the English and Chinese languages, in letters and characters not less than 120 millimetres in height, the following notices—
- (a) at the front end of the tanker—

“CAUTION LPG
小心石油氣”;
 - (b) at the rear end of the tanker—

“CAUTION LPG—KEEP CLEAR
小心石油氣——不得駛近”; and
 - (c) at each side of the tanker—

“CAUTION LPG—NO SMOKING
小心石油氣——不准吸煙”.

17. The name and telephone number of the person to be contacted in the event of an emergency involving the road tanker shall be prominently and legibly displayed in the English and Chinese languages on each door of the cab of the tanker.
18. Each valve fitted to the road tanker, other than a safety relief valve, shall be prominently and legibly identified in the English and Chinese languages.

Part 2

Cylinder Wagons

1. In this Part, unless the context otherwise requires—
compression ignition engine (壓燃式引擎) means a compression ignition engine within the meaning of the Road Traffic (Construction and Maintenance of Vehicles) Regulations (Cap. 374 sub. leg. A). (*E.R. 5 of 2022*)
2. The cylinder wagon and its equipment shall be in good and efficient working order and in such condition as not to be likely to cause danger to any person upon the wagon or upon a road.
3. The cargo compartment of the cylinder wagon shall—
 - (a) be well-ventilated;
 - (b) have a fixed roof constructed of fire-resistant material;
 - (c) be effectively screened with fire-resisting shields from—
 - (i) the interior of the cab;
 - (ii) the fuel tank;

- (iii) the electrical generator;
- (iv) the engine;
- (v) the batteries, switch gear and fuses; and
- (vi) the engine exhaust system,
of the wagon;
- (d) if the wagon is designed to carry other goods, be—
 - (i) situated at the rear-most section of the wagon; and
 - (ii) separated from any other compartment containing such goods by a partition made of mild steel fitted flush to the floor, roof and sides of the compartment; and
- (e) be capable of being locked.

4. The engine of the cylinder wagon shall be—

- (a) a compression-ignition engine;
- (b) provided with an air inlet system which prevents—
 - (i) over-running of the engine to destruction; and
 - (ii) flame propagation due to engine back-fire; and
- (c) constructed and so situated or protected so as to avoid any danger to any cylinder carried by the wagon.

5. The fuel tank of the cylinder wagon shall be—

- (a) of double case construction;
- (b) fitted with a lock to the filling hole cover;
- (c) so placed that, in the event of a leak from the tank, fuel can only drain to the ground;
- (d) separated from the cab of the wagon; and
- (e) suitably protected against impact.

6. A means of—
- (a) cutting off the supply of fuel to the engine of the cylinder wagon; and
 - (b) stopping that engine,
- shall be provided in a position which is—
- (i) outside the cab of the wagon;
 - (ii) easily accessible; and
 - (iii) identified, in the English and Chinese languages, by a notice prominently and legibly stating—

“EMERGENCY ENGINE STOP
緊急停車掣”.

7. All electrical apparatus in the cylinder wagon shall be so constructed and installed as to guard adequately against the risk of short circuit and the outbreak of fire.
8. All electrical apparatus which is in any enclosed area of the cylinder wagon where an accumulation of liquefied petroleum gas in vapour form may occur shall be suitable for use in Zone 1 areas as defined in British Standard Code of Practice 5345: Part 2: 1983.
9. The cylinder wagon shall prominently and legibly display at each side and at the rear of the wagon, in the English and Chinese languages, in letters and characters not less than 120 millimetres in height, the following notice—

“NO SMOKING
不准吸煙”.

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10. The name and telephone number of the person to be contacted in the event of an emergency involving the cylinder wagon shall be prominently and legibly displayed in the English and Chinese languages on each door of the cab of the wagon.
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Schedule 3

[reg. 27]

Particulars to be Contained in Permit

1. Name of owner of gas vehicle
2. Address of owner of gas vehicle
3. The registration mark, within the meaning of the Road Traffic Ordinance (Cap. 374), of gas vehicle
4. Permit number
5. Date of expiry
6. Permit conditions

(E.R. 5 of 2022)